

Khushboo Khanna Alias Gudia vs Punjab State Power Corporation Ltd on 28 October, 2025

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CWP-6581--2023

IN THE HIGH COURT OF PUNJAB AND HARYANA
AT CHANDIGARH

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CWP
CWP-6581-2023
Date of Decision: October 28,, 2025

Khushboo Khanna alias Gudia and another

....Petitioners

VERSUS

Punjab State Power Corporation Limited and others

...Respondents

CORAM: HON'BLE MR. JUSTICE HARPREET SINGH BRAR

Present : Mr. Shashank Shekhar Sharma, Advocates for the petitioners.

Mr. Prashant Manchanda and Mr. Angad Singh, Advocates for
respondents No.1 to 3 with Sh. Kamaljeet Singh, Officer from
office of PSPCL.

HARPREET SINGH BRAR,
BRAR J. (Oral)

1. The present petition has been filed under Article 226/227 of the Constitution of India India praying for issuance of a writ, order or directions in the nature of certiorari for quashing the order dated 06.01.2023 (Annexure P P-1)

1) passed by respondent No.3 whereby the petitioners have been wrongly held not entitled to the grant of family pension on account of death of their father late Sh.Ramesh Kumar Khanna without taking into consideration the relevant factors. Further for issuance of a writ in the nature of mandamus directing respondents No.1 to 3 to grant family pension to the petitioners on account ccount of death of their father and release the proportionate family pension in view of Rule 6.17 of Punjab Civil Services Rules, Volume Volume-II, Part-II and 1 of 7 CWP-6581--2023 judgments of Hon'ble Supreme Court in Rameshwari Devi Vs. State of Bihar 2000 AIR (SC) 735 and Vidyadhar

Vidyadharii and others Vs. Sukhrana Bai and others 2008(2) SCC 238. Lastly, prays for directing the respondents not to release the family pension in favour of respondent No.4.

2. Learned counsel for the petitioner inter alia contends that father of petitioners served the Punjab State Power Corporation Limited and retired on 30.06.2013 as Assistant Executive Engineer and ultimately passed away on 13.05.2021. The marriage between the parents of petitioners was solemnized in October, October, 2005 upon which they cohabited as husband and wife. From this wedlock, two children i.e. the petitioners were born. The petitioners being the minor children and therefore, dependent legal heirs of the deceased employee are entitled to family pension in terms of Rule 6.17, Volume-II, II, Part-I, Part I, Punjab Civil Services Rules. The claim of the petitioners is duly supported by their various ID proofs including Aadhar card, Voter ID card, Birth Certificate, Ration card (Annexures P P-2 to P-8)

8) wherein the name of the deceased employee is mentioned as their father.

4. Vide impugned order dated 06.01.2023 (Annexure P P-1),

1), respondent--Corporation Corporation rejected the claim of the petitioners merely on the ground that respondent No.4, alleged first wife of the deceased, was able to produce Succession Certificate dated 06.10.2021 issued by SDM, Ludhiana(East). The respondent-Corporation respondent Corporation has failed to take into consideration that submitting the Succession Certificate is not mandatory to prove eligibility for family pension. Further, her, the parents of petitioners purchased a joint property measuring 109 sq. yards on Chandigarh Road, 2 of 7 CWP-6581--2023 Ludhiana where both of them lived together with the petitioners. The deceased also deposited an amount of Rs.5 lakhs the name of petitioner No.1, in her HDFC Bank account, where her mother is nominee. It was the petitioners and their mother who looked after the deceased after his retirement till his death, and not respondent No.4. Moreover, the mother of petitioners filed an application under Section 12 of the Protection of Women from Domestic Violence Act, 2005 (hereinafter 'DV Act') against the deceased pursuant to which vide order dated 06.10.2016(Annexure P P-13),

13), learned JMIC, Ludhiana awarded a sum of Rs.6000/ Rs.6000/- p.m. as maintenance to her and Rs.3000/-

Rs.3000/ p.m. .m. to each petitioners, being his minor children. The petitioners are also entitled to the admissible benefits in terms of Section 16 of the Hindu Marriage Act and under Section 8 of the Hindu Succession Act, 1956. As such, the petitioners, after the death of the deceased, are entitled to get proportionate pension as per the family pension scheme. The case of the petitioner is also squarely covered by the judgments rendered by Hon'ble Supreme Court in Rameshwari Devi (supra) and Vidyadhari (supra) and also also the judgment rendered by this Court in CWP CWP-15267-2021, 2021, Khushboo Khanna and another Vs. Punjab State Power Corporation Ltd and others (Annexure P-18).

4. Per contra learned counsel for respondent respondent-Corporation Corporation submits that the deceased has never expressed an intention to provide any share in the pensionary benefits to the petitioners, rather, he has categorically mentioned the name of his first wife as his nominee. Further, her, vide letter dated 23.09.2013, the deceased communicated that the mother of petitioners 3 of 7 CWP-6581--2023 is not his wife and that respondent No.4 and her children would be entitled to his pensionary benefits. The claim of respondent No.4 is also supported by the Succession Certificate issued under Section 372 of the Indian Succession Act, 1925 by the learned Sub Divisional Magistrate. However, the order dated 06.10.2016(Annexure P-13), P 13), granting maintenance under Section 12 of the DV Act, does not in any manner prove the validity of the marriage between the deceased and the mother of petitioners.

5. Having heard the submissions made by learned counsel for the parties and after perusing the record with their able assistance, it transpires that the deceased employee has mentioned the name of respondent No.4 as nominee in the service record. Thereafter, he wrote a letter dated 23.09.2013, categorically stating that the mother of petitioners is not his wife.

6. Be that as it may, this Court cannot decide a disputed question of facts, while exercising its powers under Article 226 and 227 of the Constitution of India. A two-Judge Bench of the Hon'ble Apex Court in Orissa Agro Industries Corporation Ltd. Vs. Bharati Industries 2005 (12) 725 while speaking through Justice Ari Arijit Pasayat, observed that as follows:

"9. A bare perusal of the High Court's judgment shows that there was clear non-application of mind. On one hand the High Court observed that the disputed questions cannot be gone into a writ petition. It was also noticed that essence of dispute was breach of contract. After coming to the above conclusions the High Court should have dismissed the writ petition. Surprisingly, the High Court 4 of 7 CWP-6581--2023 proceeded to examine the case solely on the writ petitioner's assertion and on a very curious reasoning that though the appellant-

appellant Corporation claimed that the value of articles lifted was nearly rupees 14.90 lakhs no details were specifically given. From the counter-

counter affidavit filed before the High Court it is crystal clear that relevant and details disputing claim of the writ petitioner were given. Value of articles lifted by the writ petitioner is a disputed factual question. Where a complicated question of fact is involved and the matter requires thorough proof on factual aspects, the High Court should not entertain the writ petition. Whether or not the High Court should exercise jurisdiction under Article 226 of the Constitution would largely depend upon the nature of dispute and if the dispute cannot be resolved without going into the factual controversy, the High Court should not entertain the writ petition. As noted above, the writ petition was primarily founded on allegation of breach of contract. Question whether the action of the opposite party in the writ petition amounted to breach of contractual obligation ultimately depends on facts and would require material evidence to be scrutinised and in such a case writ jurisdiction should

not be exercised. (See : State of Bihar v. Jain Plastic & Chemicals Ltd., 2002(1) SCC 216

216).

10. In a catena of cases this Court has held that where dispute revolves round questions of fact, the matter ought not be entertained under Article 226 of the Constitution. (See : Chairman, Grid Corporation of Orissa Ltd. (GRIDCO) and Ors. v. Sukamani Das (Smt.) and Anr., 1999(4) RCR (Civil) 174 (SC) : (1999(7) SCC

298).

298)."

7. Further, a two-Judge bench of the Hon'ble Supreme Court in Chairman, Grid Corporation of Orissa Ltd Ltd.. (Gridco) Vs. Smt. Sukamani 5 of 7 CWP-6581--2023 298, while speaking through Justice G.T Nanavati made Das 1999 (7) SCC 298, the following observations:

"6. In our opinion, the High Court committed an error in entertaining the writ petitions even though they were not fit cases for exercising power under Article 226 of the Constitution. The High Court went wrong in proceeding on the basis that as the deaths had taken place because of electrocution as a result of the deceased coming into contact with snapped live wires of the electric transmission lines of the appellants, that "admittedly/ "admittedly/prima facie amounted to negligence on the part of the appellants". The High Court failed to appreciate that all these cases were actions in tort and negligence was required to be established firstly by the claimants. Mere fact that the wire of the electric transmission line belonging to the appellant No. 1 had snapped and the deceased had come into contact with it and had died was not by itself sufficient for awarding compensation. It also required to be examined whether the wire had snapped as a result of any negligence of the appellants and under which circumstances the deceased had come into contact with the wire. In view of the specific defences raised by the appellants in each of these cases they deserved an opportunity to prove that proper care and precautions were taken in maintaining the transmission lines and yet the wires had snapped because of circumstances beyond their control or unauthorised intervention of third parties or that the deceased had not died in the manner stated by the petitioners. These questions could not have been decided properly on the basis of affidavits only. It is the settled legal position that where disputed questions of facts are involved a petition under Article 226 of the Constitution is not a proper remedy. The High Court has not and could not have held that 6 of 7 CWP-6581--2023 the disputes in these cases were raised for the sake of raising them and that there was no substance therein. The High Court should have directed the writ petitioners to approach the Civil Court as it was done in OJC No. 5229 of 1995.

7. Reliance placed by the learned Counsel for the respondents on the decision of this Court in Sanchalakshri v. Vijayakumar Raghuvirprasad Mehta and another, 1999(1) SCT 88 (SC) : JT 1998(8) SC 55."

8. In view of the discussion above, the present writ petition is dismissed. However, the petitioners would be at liberty to avail any alternate remedy available to them, strictly in accordance with law, for the redressal of the grievances raised in the present petition.

9. Pending ending miscellaneous application(s), if any, shall also stand disposed of.

(HARPREET SINGH BRAR) JUDGE October 28, 2025 P.C Whether speaking/reasoned. : Yes/No
Whether Reportable. : Yes/No 7 of 7